California Policy Takes Aim at Social Media Transparency

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In California, legislators are currently reviewing a bill that would require social media companies to publicly share their policies regarding decisions to remove content and their reasons for doing so.

The bill was originally proposed last year, but stalled out due to freedom of speech concerns raised by advocacy groups like the Electronic Frontier Foundation and others.

This time though, Assemblyman Jesse Gabriel, D-Woodland Hills, is optimistic the bill he previously proposed will have a better chance of being enacted due to recently added amendments defining lawmakers' positions on not censoring or regulating content.

"We think we've found a way to thread that needle," Gabriel said during a news conference. "We're not telling you what to do, but tell policymakers and tell the public what you are doing."

Gabriel further explained the bill's intent, saying, "there's nothing in this bill that requires companies to censor speech," and "there's nothing that requires them to silence certain voices or to amplify other content."

Essentially, the bill would require social media companies to be transparent about when they amplify certain voices and silence others, he explained.

Still, advocacy groups like the California Chamber of Commerce, the Consumer Technology Association, Internet Association, Internet Coalition, NetChoice and TechNet have stated concerns about the legislation.

"The bill requires such complete disclosure that it would provide 'bad actors with road maps to get around our protections,' a coalition of the opponents told lawmakers," according to an Associated Press article. "Its requirement of detailed quarterly reports to the state attorney general is 'unworkable and unreasonable,' even with proposed amendments."

Another area the group took issue with was enforcement. Under the bill, companies could face civil penalties and be investigated after filing a report. This concept, they said, could result in lawsuits and suppress efforts to protect users from harmful online content.

Sen. Richard Pan, D-Sacramento, told the Associated Press, "Consumers — all of us as we're looking at our social media feeds — deserve to know how social media is amplifying and spreading hate and misinformation and disinformation, and unfortunately even fomenting violence in our society."

"They know what their algorithms do. We don't know," Pan added. "We need to know what's going on inside that black box. We need to know what those billions of dollars they've invested in researching how we think actually drives the decisions they make."

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